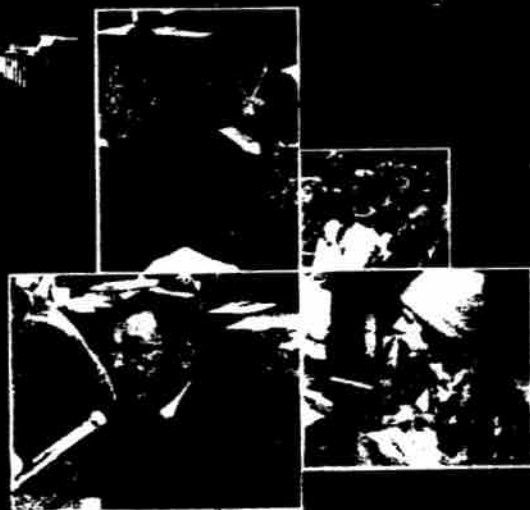


How Congress Voted — A 1984 Scorecard on Workers' Issues



A REPORT ON CONGRESS

IN 1984, legislative inertia replaced legislative achievement in the 98th Congress as the specter of a Ronald Reagan veto hung over Congress, and the Republican-controlled Senate became the burial ground of worker legislation. Despite the best efforts of Democrats and some progressive Republicans in the House of Representatives, Reagan conservatives in the Senate derailed one major legislative initiative after another designed to help American workers. While the Administration's legislative agenda continued to reward the wealthy, the list of Reagan-induced fatalities affecting working Americans continued to grow. These included:

- ▶ A bill to provide health care for jobless workers and their families.
- ▶ Legislation offering mortgage assistance monies to unemployed Americans facing foreclosure and loss of their homes.
- ▶ The domestic auto content bill to help revive the U.S. auto industry and put unemployed workers in scores of other industries back to work.
- ▶ A \$3.5 billion jobs bill creating 300,000 jobs in the badly needed repair and rehabilitation of local government facilities.
- ▶ An increase in training funds for workers made jobless by foreign imports.
- ▶ A tax cap to help balance the budget by recovering some of the revenue giveaways in Reagan's 1981 tax reform.

In the House, Republican right-wingers blocked action on plant closing protections as well as industrial policy legislation designed to make sense out of U.S. economic policymaking.

As these legislative initiatives bit the dust one after another, Reagan or his GOP congressional allies countered with their own brand of worker "protection" proposals:

- ▶ The infamous Hobbs Act amendment to have picket-line incidents made a federal crime.
- ▶ A bill to take away the legal right of injured workers to sue when hurt by faulty equipment.
- ▶ Balancing the budget on the backs of workers by taxing the value of their fringe benefits, such as health care coverage.
- ▶ A plan to strip unions of their First-Amendment right to communicate with their members on political issues.
- ▶ A bill to permit legalized wage chiseling through a "pay less" youth subminimum.
- ▶ Amendment to weaken "Buy American" requirements in existing federal programs.
- ▶ An increase in Medicare costs for retired workers.
- ▶ Proposals to repeal the eight-hour work day

This special section carries labor's 1984 report card on Congress tabulating the votes on major issues of concern to the AFL-CIO in the second session of the 98th Congress.

Congressmen have been judged on 13 key issues—"R-right" or "W-wrong"—on the basis of the position the AFL-CIO took on the legislation. Senators have been rated on 11 key votes. The tables also include the cumulative voting record

and cumulative "right" percentages of each member since election to the House or Senate. With the voting records are brief descriptions of the issues—what the vote was about and its importance to the labor movement and the nation. Issues of prime importance to labor are the first 6 votes in the House and the first 3 votes in the Senate. In the tabulations they are the votes listed to the left of the table.

standard, the ban on industrial homework and the 40-year-old child labor laws.

Senate right-wingers—Hatch, Thurmond, Helms and others—even tried to roadblock a House passed bankruptcy reform bill which included a provision repealing the Supreme Court's notorious *Bildisco* decision. That 1984 ruling had given union-busters their biggest break yet by allowing any business the right to misuse the federal bankruptcy law to destroy union contracts. But a full-court press by Washington labor lobbyists coupled with a massive AFL-CIO grass-roots lobbying campaign by union members throughout the country, made the difference. The repeal was pushed through Congress in near-record time and enacted into law.

Thanks to the Democratic majority in the House, only a few of the other conservative attacks on worker rights saw the light of day. But the tug of war between the House and the Republican-controlled Senate widened the gulf between them, and stalemate set in on Capitol Hill.

As a result, only a few key votes emerged from the legislative deliberations in Congress in 1984. Thus, this year's issue of the AFL-CIO voting record is less comprehensive than in years past. The blame for this and the legislative stalemate that plagued the 98th Congress lies squarely with the Reagan Administration and the GOP-controlled Senate whose advocacy of "do-nothing" government helped produce a near-empty legislative record.

For American workers, who stood on the sidelines watching this cruel charade played out, the payback comes on Nov. 6. That's when union members can help set a new tone for America's future by turning thumbs down on the Reagan Administration and those members of the Congress who continue to ignore the needs of America's workers and their families.

That's why this election is the most important faced by organized labor and our membership in decades. No President or conservative bloc of anti-labor Senators has ever so threatened the very existence of our unions and the laws and programs that protect our members. And that's the simple reason why the AFL-CIO has endorsed Walter Mondale and Geraldine Ferraro.

The stakes in the 1984 election are high. Every vote in every union household is crucial. The outcome on Nov. 6.

- Jobs, pensions, seniority rights at stake in bankruptcy fight
- Steel protection and modernization voted
- Restrictions on illegal immigration to save jobs crippled by Republicans
- Slash in job training funds defeated
- Cut in federal aid to education rejected
- Contracting out of civil service jobs shot down
- Commitment to energy independence maintained



1. Corporate Abuse of Bankruptcy Law Threatened to Destroy Worker Benefits

A serious threat to every protection in the union contracts of American workers arose in 1984. Following the example of Continental Airlines, company after company used the bankruptcy law to oust their employees' unions and arbitrarily shred collective bargaining agreements, fire workers, alter work rules, and reduce pay and pension benefits. This union-busting misuse of federal bankruptcy law was sanctioned in February by the U.S. Supreme Court's *Bildisco* decision. If left intact, this ruling threatened to render worthless the nation's long-standing system of collective bargaining and to undermine union-won benefits like health care, pensions, seniority and work rules.

On the day the court handed down its ruling, the AFL-CIO went to work in Congress to reverse it. The AFL-CIO sought legislation to require a company in financial distress first to obtain the permission of a bankruptcy court before it could modify or reject its collective bargaining agreement. Then, if the company was found to be truly in financial distress, it would have to engage in collective bargaining to reduce pay and benefits only to the extent necessary to save the company. In the process, the company would have to open its books to the workers' representatives, and management would have to assume its share of pay and benefit cuts.

An overwhelming bipartisan majority in both the House and Senate agreed with labor's position. In the House, the collective bargaining protection provision was included as part of a larger omnibus bankruptcy bill. When the bill reached the House floor, the key vote came on the procedural question of the debate rule under which the bill would be considered by the full House. The rule was limited so as to allow only specific amendments. Conservative Republicans, backed by the U.S. Chamber of Commerce and others in the business lobby, attempted to defeat the debate rule in order to get at the collective bargaining safeguard. Their effort was resoundingly defeated by a 242-166 vote on Mar. 21. Later, Congress approved the bankruptcy bill and it was signed into law. The new law not only nullifies the Supreme Court's *Bildisco* decision and puts a stop to corporate abuse of federal bankruptcy law, but also safeguards the integrity of union contracts by compelling employers to engage in good-faith bargaining over any contract changes necessary to allow the firm to reorganize to stay in business.

For — Right. Against — Wrong.

2. Trade—Saving U.S. Steel Jobs

Besides record budget deficits, the Reagan Administration's "do-nothing" trade policies bear direct responsibility for a record U.S. trade deficit—projected to be a staggering \$125 billion in 1985. This translates into a loss of three million American jobs. Since Reagan took office, the deficit in manufactured goods alone has gone from a \$5.3 billion surplus to an \$85 billion deficit.

While these deficits mounted, the U.S. steel industry continued to be ransacked by foreign imports whose cheaper prices were sustained by a laundry list of unfair trade practices by the exporting countries. Because of this, steel imports captured a record 33 percent of the U.S. market, and steel employment fell to less than 60 percent of 1979 levels.

To stop this economic plunder, the U.S. International Trade Commission—the agency charged with investigating unfair trade practices—recommended quotas and tariffs on imports to help the ailing steel industry. But President Reagan refused to implement these remedies and instead announced he would seek to negotiate "voluntary" import restraints with exporters.

Congress found his response insufficient. On Oct. 3 the House, by an overwhelming 285-134 vote, approved legislation giving the President stronger enforcement powers against unfair steel imports and calling on him to reduce these imports to 17 percent of the U.S. market.

For — Right. Against — Wrong.

3. Bracero Program—Importing More Foreign Workers

After rejecting amendments to strengthen the immigration bill with respect to limitations on foreign workers, the House turned around and approved an amendment by Rep. Leon Panetta (D-Calif.) to re-establish the discredited "bracero" program. This program, which was killed by Congress in 1964, had permitted the importation of hundreds of thousands of foreign agricultural workers who displaced U.S. farm and migrant workers and undercut American working standards. Bracero workers were subjected to some of the worst cases of exploitation in our nation's history. These abuses were recorded in an award-winning expose by the late Edward R. Murrow in the famous television documentary film, "Harvest of Shame."

Under the Panetta amendment, not only would the bracero program be given new life, but no termination date was set for it. Unlimited numbers of foreign workers would be admitted into the U.S. to do agricultural work. No government determination would be required to certify that there were insufficient domestic workers



available to do the work, and few protections would be provided foreign workers coming into the United States. Despite strong opposition by labor, Hispanic, church and public interest groups, the House approved the Panetta amendment by a 228-172 vote on June 14.

For — Wrong. Against — Right.

4. Protecting U.S. Jobs from Illegal Immigration

The AFL-CIO has long opposed the heavy flow of illegal immigration, which not only undercuts job opportunities for unemployed Americans but undermines U.S. labor standards as well. Illegal aliens, meanwhile, are often the victims of the worst kinds of worker exploitation. To stop the flow of illegal aliens, the primary solution is to remove the lure of employment opportunity, and the only way to accomplish that is to impose tough penalties on employers who have persons unauthorized to work in the United States.

In 1984, the AFL-CIO pushed for enactment in the omnibus immigration bill of tough penalties against employers who knowingly hire illegal aliens. While the original legislation contained such penalties, the bill that emerged from the House Judiciary Committee had been substantially weakened. For example, the committee bill failed to require an employer to check the documentation of those hired unless the employer had been notified previously by the Attorney General that it had hired an undocumented alien as an overforce. This would make it nearly impossible to prove that an employer had "knowingly" employed an illegal alien. Further injunctions against employers violating the law were reserved only for special circumstances rather than being a standard remedy for every violation. Finally, the enforcement process itself was so elaborate and time-consuming that a scoundrel employer could stave off any penalty for years.

As a result, when the bill came to the House floor the AFL-CIO backed an amendment to Rep. Gus Hawkins (D-Calif.) to remedy several of the shortcomings. The responsibility for checking a worker's identification was clearly made the duty of the employer. Injunctions were made standard in all cases, and a court procedure was established to expedite the enforcement process. The Hawkins proposal went even further by outlawing discrimination in hiring, recruiting or referring on the basis of a citizen's or legal resident alien's national origin or status as an alien. Despite these improvements, the House rejected the Hawkins amendment by a 166-253 vote on June 12.

For — Right. Against — Wrong.

5. Contracting Out of Civil Service Jobs and Public Services

Since 1981 federal government employees have been targeted by the Reagan Administration to receive pay-offs, arbitrary cuts in pay and reduction in job-related benefits. In 1984 conservatives in Congress found still

another way to attack federal workers: the contracting out of traditional public services to the private sector. For government, contracting out can often mean higher costs of services, poorer quality of services, decreased accountability by government officials, and increased corruption within government. For government workers, contracting out is a club to be used against them when they seek better pay, benefits or working conditions. Under the Reagan Administration, contracting out has taken many ridiculous forms including the unsuccessful attempt to turn the U.S. Weather Service into a private, for-profit enterprise.

During 1984 the Reagan Administration tried to contract out the administration of 30 Job Corps conservation centers currently managed by the Department of Interior and Agriculture. The Reagan Administration, which views the Job Corps facilities as a commercial activity, tried to turn their operation over to the lowest bidder despite the fact that the program is one of the nation's oldest and most successful federal job training programs.

During debate on a continuing appropriations bill, Rep. Pat Williams (D-Mont.) offered an amendment to prevent contracting out of these services. By a lopsided 242-162 vote, the House overrode conservative Republican opposition and approved the Williams safeguard

also weakened administrative oversight for H-2 by assigning approval of its regulations to the Attorney General with a significant role to be played by the Secretary of Agriculture.

During debate Rep. George Miller (D-Calif.) offered an amendment that would have: (1) maintained the H-2 program as is; (2) tightened restrictions by insuring that non-agricultural H-2 workers would be admitted only if there were not enough qualified workers available here to perform the work in question and then only if the employment of these workers would not adversely affect American wages and working conditions; and (3) establish a commission to review the H-2 program. Despite strong labor support for the Miller amendment, the House rejected it by a 164-256 vote on June 14.

For — Right. Against — Wrong.

8. Failure to Reform Immigration Laws

Although the AFL-CIO had maintained a strong commitment to support immigration legislation in 1984, the rejection of both the Hawkins and Miller amendments, followed by the adoption of the Panetta bracero amendment, forced the AFL-CIO to oppose the final House version of the immigration bill. Despite this

— Right.

ng/Education Cuts

Another major Reagan budget blitz occurred when the 1985 appropriations bill providing funding for the Departments of Labor and Health & Human Services came to the House floor. Conservatives led by Rep. Bill Frenzel (R-Minn.) offered an amendment to cut funding for both agencies by \$1.5 billion despite the fact that the bill was already \$421 million less than 1984 funding levels. With nearly nine million Americans still out of work, the amendment would have cut job training funds by \$231 million and funds for the summer youth jobs by \$55.4 million. Nearly \$950 million would have to be cut from federal aid to education programs while another \$300 million in medical research would have been erased by the Frenzel amendment. The House rejected this labor-opposed amendment by an overwhelming 276-144 vote on Aug. 1.

For — Wrong. Against — Right.

10. Preserving America's Goal of Energy Independence

Since the energy crisis of the 1970s, the AFL-CIO has vigorously supported federal policies and legislative remedies aimed at achieving energy independence through prudent energy development, conservation and alternative energy sources. A key element in the development of alternative energy sources includes the enhancement of a viable synthetic fuels program. Synthetic fuels are substitutes for natural gas or petroleum that are made from coal, shale, tar sands and hydrogen from water. The AFL-CIO supported legislation—the Energy Security Act of 1980—that created the Synthetic Fuels Corporation (SFC). The SFC was established by Congress to oversee a multi-billion dollar investment of federal funds in direct loans, loan guarantees, price guarantees and joint venture programs to encourage the commercialization of synfuels technology. This industry has already created badly needed employment opportunities for jobless American workers.

In 1984, during debate on an Interior Dept. appropriations bill, House Republicans led an effort to slash funding for the synfuels program. Rep. Silvio Conte (R-Mass.) proposed an amendment to cut \$10 billion from the program. Rep. Bill Ratchford (D-Conn.) countered with a labor-backed compromise to reduce appropriations by only \$5 billion. By a 236-177 vote on Aug. 2 the House agreed to the Ratchford amendment and thereby sidetracked the more drastic Conte proposal.

For — Right. Against — Wrong.

11. Saving Education Funds from Further Cuts

House conservatives, fearing the political consequences of a near \$200 billion Reagan budget deficit, again swung their budgetary meat ax in 1984 at domestic social program spending. High on the target list for right-wing conservatives were federal aid-to-education programs. During debate on legislation reauthorizing 11 educational aid programs designed to help disadvantaged students, Rep. William Goodling (R-Pa.) tried to slash these programs by \$700 million. However, the Goodling amendment was rejected by a 169-233 vote on July 28.

For — Wrong. Against — Right.

12. Environmental Protection for Workers and Families

In 1980 Congress recognized that abandoned toxic waste dumps are a major environmental and health hazard. In response, Congress created a "superfund"—a \$1.6 billion, five-year, clean-up plan to be administered by the Environmental Protection Agency (EPA) in cooperation with affected states and local jurisdictions. Unfortunately, the 1980 legislation failed to include a key provision for victim compensation which had been opposed by Senate Republicans. Now, under the Reagan Administration, the "superfund" clean-up plan has been slowed to a crawl. A major scandal in 1983 over "superfund" mismanagement resulted in massive resignations of the Reagan-appointed EPA hierarchy.

In 1984, Congress considered a five-year reauthorization of the "superfund." The House version again included a key victim-compensation program. A study commissioned by the original 1980 clean-up law found that legal remedies available in state courts to victims of toxic waste were inadequate. The 1984 bill remedied this by permitting citizens to sue in federal court to gain compensation from companies for injuries caused by hazardous wastes, to force actions to clean up a site if the EPA or the states have not taken such action, or to make EPA carry out the provisions of the super-fund law.

Once again conservatives led the fight to strike down the victim-compensation provision as they had done in 1980. Despite labor's opposition, the House by a narrow 208-200 vote on Aug. 9 approved an amendment by conservative Rep. Harold Sawyer (R-Mich.) to delete the legal rights provision for toxic waste victims.

For — Wrong. Against — Right.

13. Promoting Democracy Abroad

Historically, the AFL-CIO has played an important role in the arena of international affairs. The federation not only maintains direct relations with its counterpart labor centers in free countries around the globe, but is directly involved as well in the advancement of trade unions in the developing nations. Since 1962, the AFL-CIO through its regional institutes has contributed enormous resources to unions in developing nations for training in the leadership techniques, basic economics and the practical application of democracy. These institutes have also been directly involved, at the invitation of foreign trade unions and with the cooperation of the national governments, in other activities including vocational training, worker education and construction of cooperatives, medical clinics and housing.

Recognizing the contribution that these activities make to the evolution of democracy abroad, the Congress in 1983 authorized creation of the National Endowment for Democracy. The Endowment is a federally financed, private, non-profit organization whose various activities, such as fostering trade unions in developing countries, are designed to promote democratic institutions. The AFL-CIO, through its Free Trade Union Institute (FTUI), is a participating organization in the Endowment program. In establishing the program, Congress recognized that activities such as advancing trade unions abroad are in the public interest and therefore deserving of public support. In fiscal year 1984, of \$18 million appropriated for the Endowment, \$11 million went to FTUI for such programs.

In 1984, funding for the Endowment came under attack in both the House and Senate. During debate on the Commerce, Justice, State appropriations bill for FY 1985, the House voted to eliminate the entire \$31.3 million appropriation for the Endowment. In the Senate, funding was reduced to \$21 million (see Senate Vote No. 4). House-Senate conferees later agreed to a compromise level of \$18.5 million. When the conference report came back to the House, Rep. Richard Ottinger (D-N.Y.) announced he would again try to knock out all Endowment funds as he had done before. However, he never got his second chance as the House, by a 237-181 vote on Aug. 4, agreed to a procedural motion offered by Rep. Newt Smith (D-Iowa) to accept the final compromise funding level.

For — Right. Against — Wrong.



6. Trade—Restricting Special Import Privileges

The Trade Act of 1974 authorized for a period of ten years the Generalized System of Preferences (GSP), which among other features permits the President to exempt from all tariffs certain items imported from developing countries. GSP imports now constitute about \$10.8 billion worth of imports per year, or about 4 percent of total U.S. annual imports. In dollar value, however, the vast majority of GSP duty-free products comes from seven nations. The top three countries—Taiwan, South Korea and Hong Kong—account for 52 percent of total GSP imports in dollar value.

Clearly, these three nations can no longer be characterized as "developing" countries and thus deserving of special access to the U.S. markets at the cost of U.S. workers' jobs. Taiwan, South Korea and Hong Kong now represent the fifth, seventh and ninth largest sources of U.S. imports respectively. As such, they have become major trading countries, exporting more than \$26.5 billion worth of goods to the United States alone in 1983. Furthermore, the U.S. trade deficit with these countries alone is expected to reach \$19.5 billion by the end of this year. Given their superior trade advantage, the AFL-CIO opposed continuing to give these nations special trade privileges.

During debate on a bill to extend GSP for five more years, Rep. Richard Gephardt (D-Mo.) offered an amendment to strike Hong Kong, South Korea and Taiwan from the list of eligible countries. Despite labor's support for the amendment, the House rejected this important fair trade amendment by a 174-233 vote.

For — Right. Against — Wrong.

7. Setting Labor Standards for Foreign Workers

Another issue of longstanding concern to the AFL-CIO has been the misuse of the existing "H-2" temporary foreign worker program. This program now allows employers to use temporary foreign workers so long as, in the words of the existing law, "unemployed persons capable of performing such service or labor cannot be found in this country." While complaints about the program abound, since H-2 is administered by the Dept. of Labor, it has remained relatively small in size and protective of the rights of both domestic workers who have priority for the jobs and those foreign workers whose admission has been authorized.

Once again, however, the Judiciary Committee weakened the existing H-2 limitations. The committee bill specifically eliminated the language protecting the preemptive employment right of jobless U.S. workers. It



ALABAMA

Dunlap (D)
Harris (D)

ALASKA

Matheson (D)
Harris (D)

ARIZONA

Goldman (D)
Dunlap (D)

ARKANSAS

Brumby (D)
Fryer (D)

CALIFORNIA

Wilson (D)
Cassidy (D)

COLORADO

Armstrong (D)
Hart (D)

CONNECTICUT

Wadley (D)
Dodd (D)

DELAWARE

Bell (D)
Harris (D)

FLORIDA

Hawkins (D)
Carter (D)

GEORGIA

Matheson (D)
Harris (D)

HAWAII

Isaacs (D)
Matheson (D)

IDAHO

McChesney (D)
Snyder (D)

ILLINOIS

Perry (D)
Dillon (D)

INDIANA

Logan (D)
Quayle (D)

IOWA

Crawford (D)
Lynn (D)

KANSAS

Dale (D)
Kavanaugh (D)

KENTUCKY

Ford (D)
Matheson (D)

LOUISIANA

Johnson (D)
Lump (D)

MAINE

Cobb (D)
Matheson (D)

MARYLAND

Matheson (D)
Harris (D)

MASSACHUSETTS

Stewart (D)
Finnell (D)

MICHIGAN

Wright (D)
Harris (D)

MINNESOTA

Matheson (D)
Dunlap (D)

MISSISSIPPI

Coleman (D)
Harris (D)

MISSOURI

Matheson (D)
Harris (D)

MONTANA

Matheson (D)
Harris (D)

NEBRASKA

Matheson (D)
Harris (D)

NEVADA

Matheson (D)
Lund (D)

NEW HAMPSHIRE

Thompson (D)
Matheson (D)

NEW JERSEY

Bradley (D)
Lundberg (D)

NEW MEXICO

Dunlap (D)
Harris (D)

NEW YORK

D'Ambro (D)
Mayhew (D)

NORTH CAROLINA

Kear (D)
Harris (D)

NORTH DAKOTA

Anderson (D)
Burdick (D)

OHIO

Glass (D)
Matheson (D)

OKLAHOMA

Matheson (D)
Harris (D)

OREGON

Matheson (D)
Friedland (D)

PENNSYLVANIA

Harris (D)
Spector (D)

RHODE ISLAND

Chapin (D)
Full (D)

SOUTH CAROLINA

Thompson (D)
Matheson (D)

SOUTH DAKOTA

Albright (D)
Fennell (D)

TENNESSEE

Harris (D)
Harris (D)

TEXAS

Tower (D)
Matheson (D)

UTAH

Corn (D)
Matheson (D)

VERMONT

Stallard (D)
Lundy (D)

VIRGINIA

Tyler (D)
Winters (D)

WASHINGTON

Evans (D)
Gordon (D)

WEST VIRGINIA

Byrd (D)
Matheson (D)

WISCONSIN

Kearns (D)
Fennell (D)

WYOMING

Matheson (D)
Harris (D)

- Health care for jobless rejected
- Retiree Medicare costs jacked up
- Home mortgage foreclosure protection buried without a vote
- Rights of minorities, handicapped reversed
- Tax reform to help balance the budget defeated
- Job-saving Domestic Content bill died in Committee
- Child day care for working women derailed



1. Protecting Union Political Rights

Sen. Jesse Helms (R-N.C.), whose 1984 re-election campaign is expected to set a spending record of \$20 million, attempted to legislate a sweeping attack on the political spending rights of unions. The Helms amendment would have prohibited unions from using dues money for educational activities, such as voter registration, get-out-the-vote drives and political communications to union members. He would have denied unions the right to finance the cost of political action committees, a right now granted under federal election law to both unions and corporations. The broad reach of the Helms amendment would have applied to both federal and state elections. Further, despite the fact that federal election law treats union and corporate activity equally, the Helms amendment would not have limited in any way the right of corporations to spend their treasury funds for the same activities. The obvious purpose of the Helms amendment was to restrict the right of unions to exercise their First-Amendment right to communicate with their members on political issues, prevent unions from encouraging their members to participate in the democratic election process, interfere in unprecedented fashion with the right of states to enact their own campaign finance rules, and destroy the neutrality of the federal election act with regard to corporate and union treasury spending in federal elections.

Realizing that the Helms amendment was nothing more than an anti-union attack promoted by the National Right to Work Committee, the Senate again rejected the Helms amendment as it had done in 1982. But this time it was rejected by an even larger margin. On May 22, the Senate voted 65-32 for a motion by Sen. Charles Mathias (R-Md.) to table and thus kill the Helms amendment.

For tabling — Right. Against tabling — Wrong.

2. Restoring Health Insurance for the Unemployed

One of the important recession relief programs pushed by the AFL-CIO was legislation to provide health care benefits for the unemployed. When workers are jobless they usually lose health care insurance. Since most jobless workers are unable to pay the costly premiums for private insurance and are not eligible for Med-

icaid, they and their families must do without basic medical care.

With more than eight million persons jobless for much of 1984, the AFL-CIO continued to push for a program of health care for the unemployed. During debate on a tax increase bill, Sen. John Heinz (R-Pa.) offered an amendment to make \$700 million in federal grants available to the states to provide health care benefits to the long-term unemployed. As it did in 1983, the conservative-controlled Senate rejected this amendment by a 39-57 vote on Apr. 11.

For — Right. Against — Wrong.

3. Failure to Win Tax Relief for Construction Workers

In 1984 the AFL-CIO backed legislation to permit construction workers to deduct their ordinary and necessary business expenses from their income taxes, just as other taxpayers already do. This tax adjustment was necessary because, under current law, the constraints and limitations on travel and business expenses do not adequately reflect the unique circumstances in the construction trades. As a result, many workers are unfairly treated. Today's construction workers are frequently employed on sites that are far from home. Under current federal income tax law, traveling expenses (including meals and lodging) are deductible if they are incurred while away from home in the pursuit of a trade or business. But such employment must be temporary and expected to last a short period of time. Traveling expenses incurred in connection with employment that is considered to be of indefinite or indeterminate duration generally are not tax deductible. But in the real world of construction, job-related travel expenses do not lend themselves to the distinction between temporary and indefinite employment. Thus, there is uncertainty and inequity in denying these workers an income tax deduction for legitimate costs associated with their jobs.

During Senate debate on a miscellaneous tax bill, Sen. John Melcher (D-Mont.) offered an amendment to incorporate this long overdue tax clarification. Senate Finance Committee Chairman Sen. Robert Dole (R-Kans.) successfully killed the Melcher proposal, tabling it by a 50-31 vote on Apr. 12.

For tabling — Wrong. Against tabling — Right.

4. Fair Corporate Taxes

The corporate share of tax revenues to operate the federal government has fallen from 25 percent in 1960 to 6.6 percent in 1983. Individuals—mostly working families—have had to make up the difference. The largest plunge in big-business tax contributions to the federal government came as a result of the 1981 Reagan tax bill, which cut the effective corporate income tax rate in half at a loss of \$170 billion over five years. The corporate tax system is so lopsided now that in 1984, about 90,000 corporations will pay no taxes. Most firms in the chemical industry, for example, not

only did not pay taxes in 1983, but received \$211 million in refunds or write-offs to reduce future taxes.

To correct this gross inequity, Senators Howard Metzenbaum (D-Ohio) and Edward Kennedy (D-Mass.) during debate on a miscellaneous tax bill offered an amendment to impose a minimal 15 percent tax on corporate profits in excess of \$50,000. The amendment was designed to restore a small measure of fairness and raise \$19.1 billion over a five-year period. Despite the fact that the nation faced a staggering \$200 billion deficit, the amendment was rejected by a 62-30 vote on a tabling motion by Finance Committee Chairman Robert Dole (R-Kans.) on Apr. 12.

For tabling — Wrong. Against tabling — Right.

"Time!"



5. Balancing the Federal Budget

In 1981 the AFL-CIO and other organizations predicted that the Reagan tax cuts, which included steep reductions in the taxes paid by the wealthy and corporations, would hemorrhage the federal treasury at a cost of hundreds of billions of dollars in lost revenues. By 1984 this prediction had come true as the nation staggered toward a \$200 billion Reagan budget deficit—more than the total accumulated deficits of every president from George Washington through Jimmy Carter. As deficits mounted, the AFL-CIO proposed a range of tax reforms designed to get the deficit under control. One of them—a \$700 cap on the individual tax cuts—would have reclaimed the full tax break for those earning \$45,000 or less but limit the tax windfall for the rich to \$700. When the Senate rejected this key tax reform in June 1983, the Senate rejected this key tax reform.

During Senate debate this year on a bill designed to reduce the deficit, Sen. John Chafee (R-R.I.) offered another labor-backed reform amendment. It was designed for three years the indexation of the tax rates Congress enacted as part of the Reagan tax cuts in 1981. The Chafee amendment would have raised \$5 billion over the three-year period, mostly from the wealthy. Refusing to ignore its revenue impact, the Senate rejected the 57-38 vote on Apr. 6 agreed to a motion by Sen. Robert Dole (R-Kans.), chairman of the Senate Finance Committee, to table and thus kill the Chafee amendment.

For tabling — Wrong. Against tabling — Right.



'And Away We Go!'



6. Unfair Higher Telephone Costs

As a result of the Communications Act of 1934 and subsequent regulatory action by the Federal Communications Commission, the government for the last five decades has pursued a policy of promoting reasonably priced, universal telephone service for all citizens. The result of this federal policy is that 92 percent of all Americans now have access to the nation's telephone system. This public policy was, however, jeopardized following the court-ordered breakup of American Telephone & Telegraph, which precipitated an anti-consumer regulatory ruling by the FCC, now under the conservative control of Reagan appointees. The FCC proposed to allow a flat charge on residential and small business phone users for the right of access to long-distance service whether they use such service or not. The fee originally was to go into effect in April of 1984, starting at \$2 per month for residential customers and rising yearly until 1990.

The AFL-CIO strongly opposed the access fee. Labor charged that the fee, when combined with increases in local rates, could raise local phone bills by as much as 100 percent, undermining the principle of universal telephone service. The AFL-CIO also pointed out the unfairness of a proposal which would penalize the 17 percent of all telephone customers who make no long-distance calls.

In the Senate the key vote came on a bill sponsored by Sen. Robert Packwood (R-Ore.) that would have temporarily banned FCC imposition of the access fee. The bill also included an important pension rights plan that would allow employees of the new telephone companies created under divestiture to transfer their pension rights to their new employers. However, one day before the vote, the FCC announced that it was postponing implementation until at least June of 1985. The FCC counter-move clearly undercut Packwood's effort as the Senate, by a 44-40 vote on Jan. 26, agreed to a motion by Sen. Barry Goldwater (R-Ariz.) to table consideration of the Packwood bill. (The pension protection provision was later included in an unrelated tax bill which was signed into law.)

For tabling — Wrong. Against tabling — Right.

'It's Bottomed Out—It Says Here!'



7. Restoring a Civil Rights Law

In early 1984 the U.S. Supreme Court handed down a regressive ruling that undermined federal civil rights law, overturning a lower court decision which had found sex discrimination at Grove City College in Pennsylvania. The court's conservative majority narrowly constricted the provisions of Title IX of the Education Amendments of 1972 which barred sex discrimination in any educational "program or activity receiving federal financial assistance." Although Grove City College is a recipient of federal financial assistance, the court majority defined Title IX's "program or activity" language so narrowly as to reach only the school's student financial aid program, rather than the entire school as the lower court had held. The result of the decision was to undermine the federal law's comprehensive prohibition against sex discrimination in education. Not surprisingly, in keeping with the Reagan Administration's abysmal civil rights record, the Assistant Attorney General for Civil Rights stated publicly that he would seek to broaden the reach of the Grove City ruling by applying it to other civil rights laws.

The AFL-CIO and the Leadership Conference on Civil Rights almost immediately countered with legislation to reverse Grove City. It would restore to four key civil rights statutes the broad scope and coverage that was originally intended by Congress and enforced by the federal government for the last 20 years. While the bill easily passed the House with strong bipartisan support, Senate Republicans blocked action. The chief opponent was Labor Committee Chairman Orrin Hatch (R-Utah), who bottled up the labor-backed bill in his committee. A last-ditch attempt by Sen. Robert Byrd (D-W.Va.) to add the Grove City repealer bill to an unrelated continuing appropriations bill failed in the waning hours of the 98th Congress. When it was clear that opponents would be successful in killing the civil rights measure, the bill's original cosponsor Sen. Robert Packwood (R-Ore.) moved to table his own amendment as a means to secure a recorded vote on the issue. His amendment was tabled by a 53-45 vote on Oct. 2.

For tabling — Wrong. Against tabling — Right.

Ripped Off



8. Increasing Senior Citizen Health Care Costs—I

No sooner had the Senate rejected the revenue-raising curb on indexing (see Senate vote #4), than it voted for an increase in Medicare costs for the elderly as a way to reduce the federal budget deficit. At present senior citizens and disabled Medicare beneficiaries spend an average of 20 percent of their limited incomes on medical care. The tax bill reported by the Senate Finance Committee would have compounded this financial burden by increasing the Part B Medicare premium and by raising the Medicare deductible. Part B is a medical insurance program that pays up to 80 percent of the reasonable charges for a range of elderly health care services, including doctor and outpatient hospital care, outpatient physical therapy and home health care. The AFL-CIO charged that if medical care costs continued to rise at the present pace, which is greater than the inflation rate in the rest of the economy, monthly Medicare premiums would also increase at rates far exceeding the annual cost-of-living adjustments for social security benefits. It was further estimated that if the Finance Committee bill passed, premium increases by 1990 could consume 30 percent of this annual cost-of-living increase.

During debate on the tax increase package, Sen. Edward M. Kennedy (D-Mass.) offered an amendment to eliminate the increase in the Part B premium. The conservative-controlled Senate, however, rejected the Kennedy amendment and thereby voted for the Medicare increases when it agreed by a 58-36 vote to a tabling motion by Sen. Robert Dole (R-Kans.).

For tabling — Wrong. Against tabling — Right.

9. Increasing Senior Citizen Health Care Costs—II

After the defeat of the Kennedy Medicare amendment, Sen. Max Baucus (D-Mont.) countered with an amendment designed to restore \$588 million of the total \$9 billion in Medicare cuts proposed by the Senate Finance Committee. The Baucus amendment would have eliminated the proposed increase in the Medicare

'Please—You're Blocking the Door!'



'Voices? I Don't Hear Any Voices!'



Part B deductible and reduced the Part B premium increases in 1987 so that premium hikes would not exceed the rate of inflation. It would have also provided for closer monitoring of physician behavior under the proposed physician fee freeze so that Medicare beneficiaries could be protected from unfair cost shifting during the two-year freeze. During debate, Sen. Baucus pointed out that of the \$9 billion in Medicare costs, senior citizens were required to contribute \$3.7 billion in higher medical fees while physicians and hospitals were only required to make up \$2.9 billion through reduced fees. Once again the fiscal conservatives turned their backs on senior citizens and voted down the Baucus amendment by a 50-44 vote on May 17.

For — Right. Against — Wrong.

10. Working Women—Child Day Care Services

With working women and single-parent households comprising an ever-larger proportion of the U.S. labor force, one of their most pressing needs is for affordable and adequate child day care services. In the absence of a comprehensive child day care program, many women have already had to abandon their jobs and turn to welfare. For others, turning their children into "latchkey kids" is the only alternative. The AFL-CIO has long been on record in support of federal assistance to establish programs providing infant care, kindergarten and after-school child day care services at affordable rates.

During Senate debate on legislation designed to upgrade mathematics and science education in the nation's schools, Sen. Don Riegle (D-Mich.) offered an amend-

'Is He Really Necessary?'



ment to provide \$15 million in seed money over the next three years to establish after-school day care programs using existing school facilities. Although a similar bill had been unanimously passed by the House, Senate conservatives voted 51-42 in support of a motion by Sen. Howard Baker (R-Tenn.) to kill the amendment.

For tabling — Wrong. Against tabling — Right.

11. Promoting Democracy Abroad

In 1983 Congress authorized the creation of the National Endowment for Democracy, a non-profit organization whose activities, such as fostering trade unions in developing countries, are designed to promote the development of democratic institutions abroad. The AFL-CIO through its Free Trade Union Institute is a participating organization in the Endowment program.

When the 1985 funding authorization for the Endowment reached Congress, it immediately came under attack in the House where the entire \$31 million appropriation was deleted. (See House vote #13.) In the Senate several attempts were made to slash the Endowment's funds. While more drastic amendments to eliminate all funding were rejected, Sen. Warren Rudman (R-N.H.) succeeded in reducing the appropriation by \$10 million to a level of \$21 million. The amendment was adopted by a 62-30 vote on June 28. Senate-Senate conferees later agreed to a spending level of \$18.5 million for the Endowment.

For — Wrong. Against — Right.